
Name

Mailing Address

City State Zip Code

Phone Number

E-mail Address (optional)

- ☐ MONTANA _____ JUDICIAL DISTRICT COURT, _____ COUNTY
☐ IN THE JUSTICE COURT OF _____ COUNTY, STATE OF
MONTANA
☐ IN THE MUNICIPAL OR CITY COURT OF _____, MONTANA

In re the Expungement, Resentencing, or
Redesignation of the Marijuana-Related
Conviction of

_____,
Petitioner.

Case No: _____

Proposed Order Granting

- ☐ Expungement of Conviction
☐ Resentencing of Conviction
☐ Redesignation of Conviction

Petitioner has requested ☐ Expungement / ☐ Resentencing / ☐ Redesignation of a
criminal conviction pursuant to the Montana Marijuana Regulation and Taxation Act
(MMRTA).

On or about _____ (date), Petitioner was convicted of the
following offense:

- ☐ Criminal Distribution of Dangerous Drugs (marijuana),
in violation of § 45-9-101, MCA;
☐ Criminal Possession of Dangerous Drugs (marijuana),
in violation of § 45-9-102, MCA;
☐ Criminal Possession with Intent to Distribute (marijuana),
in violation of § 45-9-103, MCA;
☐ Criminal Production or Manufacture of Dangerous Drugs (marijuana),
in violation of § 45-9-110, MCA;
☐ Criminal Possession of Drug Paraphernalia (marijuana),
in violation of § 45-10-103, MCA;

☐ Manufacture or Delivery of Drug Paraphernalia (marijuana),
in violation of § 45-10-104, MCA;

☐ _____ (specify offense)

Petitioner is ☐ currently serving / ☐ has completed the sentence for this conviction.

On _____ (date), Petitioner served the County Attorney of
_____ County with the Petition. The County Attorney ☐ opposed
/ ☐ did not oppose this Petition.

This Court ☐ held / ☐ did not hold a hearing on this Petition.

IT IS THEREFORE ORDERED:

Pursuant to § 16-12-113(6), MCA, this Court GRANTS the Petition as follows:

☐ The above-described conviction is hereby EXPUNGED.

☐ The above-described conviction is hereby REDESIGNATED AS A MISDEMEANOR
OFFENSE, specifically: _____ ,

and Petitioner is RESENTENCED as follows: _____

☐ The above-described conviction is hereby REDESIGNATED AS A CIVIL

INFRACTION, specifically: _____ ,

and the conviction is redesignated as follows: _____

Petitioner shall sent a copy of this Order to the Department of Justice, along with any
necessary forms and fees to effectuate the ordered expungement, resentencing, or
redesignation.

Dated this _____ day of _____, 20____.
(date) (month) (year)

(Judge's signature)